



HospitalOS

Hospital Operating System for Africa

Tenant Service Agreement

Version 1.0 · Effective 1 August 2026 · AgoroX Africa

This Tenant Service Agreement (“Agreement”) is entered into between **AgoroX Africa** (“AgoroX”, “we”, “us”), the operator of the HospitalOS platform, and the hospital, clinic, or healthcare facility identified by the activation code used to accept this Agreement (“Tenant”, “you”).

Template notice.

This is AgoroX's own template for its use, drafted for the HospitalOS activation flow. It is not a substitute for review by qualified Nigerian legal counsel before it carries real contractual weight with a paying tenant.

1. Parties

- This Agreement is between AgoroX Africa and the Tenant identified by the activation code used to accept it.
- The individual accepting this Agreement on the Tenant's behalf represents that they are authorised to bind the Tenant to its terms.

2. Definitions

- **Platform** — the HospitalOS software-as-a-service application, including all modules, updates, and associated services made available by AgoroX.
- **Tenant Data** — all patient records, clinical data, financial records, and other information the Tenant or its staff enters into or generates through the Platform.
- **Subscription Plan** — the pricing tier (Starter, Growth, Scale, or Enterprise) assigned to the Tenant's activation code at the time of issue.
- **Authorised Users** — employees, contractors, and staff of the Tenant granted accounts on the Platform by the Tenant's own administrators.

3. Grant of Access

Subject to this Agreement and timely payment of applicable fees, AgoroX grants the Tenant a non-exclusive, non-transferable right to access and use the Platform for the Tenant's own internal healthcare operations, across multiple devices and, where the Tenant operates more than one physical site, multiple centres under a single tenancy.

Access is provisioned only through an activation code issued by AgoroX. The Tenant may not sell, sublicense, or otherwise transfer its access to any third party.

4. Subscription Plans and Fees

The Tenant's Subscription Plan and fee structure are fixed at the time AgoroX issues the activation code and are not altered by anything entered during activation:

Plan	Fee structure
Starter	2.75% commission on gross collections. No upfront fee.
Growth	2.25% commission on gross collections. No upfront fee.
Scale	1.75% commission on gross collections. No upfront fee.



Plan	Fee structure
Enterprise	■4,500,000 per year, payable annually in advance. No commission.

Commission-based plans are settled monthly, with gross collections, the commission deducted, and the net amount payable to the Tenant shown in Platform Settlement records. Pricing changes to an existing Tenant require thirty (30) days' written notice and are never retroactive.

5. Payment Terms

- Commission-based plans: calculated automatically on gross collections and deducted at settlement.
- Enterprise plan: invoiced annually in advance; accounts unpaid after thirty (30) days may be suspended.
- All fees are exclusive of applicable taxes, levies, or statutory charges.

6. Term and Renewal

This Agreement takes effect on the date the Tenant's activation code is redeemed and continues until terminated under Section 14. Enterprise subscriptions renew automatically for successive twelve-month terms unless either party gives at least thirty (30) days' notice of non-renewal.

7. Ownership of Tenant Data

The Tenant retains full ownership of all Tenant Data. AgoroX claims no ownership interest in patient records, clinical data, or any other information entered into the Platform.

AgoroX will not access, use, or disclose Tenant Data except: to provide and support the Platform; with the Tenant's consent; to comply with a valid legal obligation; or in aggregated, de-identified form for improving the Platform.

8. Data Protection and Privacy

AgoroX processes Tenant Data as a data processor on the Tenant's behalf, in accordance with the Nigeria Data Protection Act 2023. The Tenant remains the data controller and is responsible for obtaining any patient consent required by law. AgoroX will notify the Tenant without undue delay of any data breach affecting Tenant Data.

9. Tenant Responsibilities

- Provide accurate hospital identity and contact details, kept current.
- Manage Authorised User accounts responsibly, including deactivating staff who leave.
- Use the Platform lawfully and in compliance with Nigerian healthcare regulations and professional licensing requirements for clinical staff.
- Ensure the accuracy of clinical, billing, and patient data entered into the Platform.
- Not attempt to circumvent, reverse-engineer, or interfere with the Platform's security.

10. AgoroX Responsibilities

- Use commercially reasonable efforts to make the Platform available and secure.
- Provide support through the channels published on the Platform.
- Maintain an audit trail of security-relevant actions.
- Notify the Tenant of material changes affecting its use of the Platform.

11. Service Availability



AgoroX targets high availability but does not guarantee uninterrupted access. AgoroX is not liable for unavailability caused by factors outside its reasonable control, including ISP failures, power outages at the Tenant's premises, or Force Majeure events (Section 18).

12. Intellectual Property

The Platform, including its software, design, and documentation, remains the property of AgoroX. This Agreement grants a right to use the Platform, not any ownership interest in it. Feedback the Tenant provides may be used by AgoroX without obligation or compensation.

13. Confidentiality

Each party will protect the other's confidential information with the same care it uses for its own, and not disclose it except as necessary to perform this Agreement or as required by law. This survives termination for three (3) years, except Tenant Data, which remains protected under Section 8 for as long as AgoroX retains it.

14. Termination

- Either party may terminate for convenience with thirty (30) days' written notice.
- AgoroX may suspend or terminate immediately for: non-payment of undisputed fees; uncured material breach after fourteen (14) days' notice; or a security risk to other tenants or patients.
- Upon termination, Tenant Data remains exportable for thirty (30) days before deletion, except where retention is legally required.

15. Limitation of Liability

AgoroX's total liability will not exceed fees paid in the preceding twelve (12) months. Neither party is liable for indirect or consequential damages, except for gross negligence, wilful misconduct, or breach of confidentiality/data protection obligations. Nothing here limits liability that cannot be limited by law.

16. Indemnification

The Tenant indemnifies AgoroX against claims from the Tenant's misuse of the Platform or breach of this Agreement. AgoroX indemnifies the Tenant against claims that the Platform, used as intended, infringes a third party's IP rights.

17. Compliance with Healthcare Regulations

The Tenant is solely responsible for its own compliance with Nigerian healthcare regulations, including practitioner licensing and NHIA requirements where applicable. The Platform is a record-keeping and operational tool; it does not constitute medical advice, and AgoroX is not responsible for clinical outcomes.

18. Force Majeure

Neither party is liable for delay or failure (other than payment obligations) caused by events beyond its reasonable control, including natural disasters, war, civil unrest, government action, or widespread infrastructure failure.

19. Governing Law and Dispute Resolution

This Agreement is governed by the laws of the Federal Republic of Nigeria. Disputes will first be attempted to be resolved through good-faith negotiation; if unresolved within thirty (30) days, either party may refer the matter to arbitration under the Arbitration and Mediation Act 2023, seated in Lagos, in English.

20. General



- This Agreement, with the Subscription Plan assigned at activation, is the entire agreement between the parties and supersedes prior discussions.
- AgoroX may update this Agreement; material changes will be communicated, and continued use after the effective date constitutes acceptance.
- If any provision is unenforceable, the rest remains in effect.
- Neither party may assign this Agreement without written consent, except AgoroX may assign it in connection with a merger, acquisition, or asset sale.

Signature

This Agreement is signed electronically at the moment of activation — the Tenant's typed full legal name, together with the date and time of signing, is recorded on the Tenant's account and in the platform audit trail as the record of acceptance.

Questions about this Agreement?

support@agorox.africa